
Arthur G. Dozier School for Boys

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3-4-1958

Transcript, Testimony of Dr. Eugene Byrd before the U.S. Senate's Committee on the Judiciary, Subcommittee on Juvenile Delinquency, March 4, 1958

Eugene Byrd

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Recommended Citation

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Dr. Eugene Byrd, a Miami psychologist who had worked at the Florida School for Boys, was called on March 4, 1958, to give testimony before the U.S. Senate's committee on the judiciary.

STATEMENT OF DR. EUGENE BYRD, PSYCHOLOGIST, MIAMI, FLA.

Dr. BYRD. That is correct.

Mr. MITLER. And your vocation is a psychologist?

Dr. BYRD. That is right.

Mr. MITLER. And have you specialized in working with young people and emotionally disturbed youngsters?

Dr. BYRD. That is right, that has been my training and background in child psychology primarily.

Mr. MITLER. What was the extent of your experience in working in a State correctional school surrounding?

Dr. BYRD. Actually the duties? I was employed for exactly 1 year, 12 months, as a psychologist and director of the guidance clinic in a correctional school for boys.

The duties primarily consisted of face-to-face counseling with problems which they had. They came in on a self-referral basis, also involved some achievement and intelligence testing and general attendance at the department heads' meetings, residence on the campus, and conferences on occasion with various staff members.

Mr. MITLER. What were the positive things in the program that you observed?

Dr. BYRD. Basically some of the positive things were a very well run institution from a business standpoint, a very well equipped physical plant, well kept grounds.

The training program, the actual vocational aspect of the training program had many positive aspects, particularly in the variety and the quality of such things as auto mechanics, printing, linotype, woodworking, painting. This is a positive. I can get to some of the negatives.

Another positive was the academic program where a boy would come in, was taken at his academic level and worked on an individual basis similar to the system that the Army used where he could then progress at his own speed rather than a classroom situation, so that oftentimes a boy in 8 or 9 months could cover the same amount of schoolwork that a normal child would cover in a public school system over a course of 12 months.

Mr. MITLER. Did they have a point system whereby boys moved from one grade to another and they had to reach a certain grade before they could leave the institution?

Dr. BYRD. Yes. This was quite a complex system. It is very difficult for adults to understand and I am not sure that I could repeat the description, but it is a comprehensive rating rank system where a boy receives weekly ratings for a given period of time and then advances through a series of ranks, and there must be, of course, a specific rank achieved and held for a given period of time before the boy is released.

Mr. MITLER. You have mentioned a lot of positive things. In addition, was there a tense or relaxed atmosphere in the campus of the school?

Dr. BYRD. Generally a relaxed atmosphere I would describe the school as. Boys walked around. There were restricted areas but they did not walk around in any military style or anything such as this. They could talk. There were no enforced silences as they moved around.

Mr. MITLER. This school had a system of control that you knew of?

Dr. BYRD. Basically the control system was a point system, a grading system based on a low grade. The fear of the low grade is everything that went through a boy's mind, not achieving the high grade.

In other words, they got graded by their crew instructor, by their schoolteacher, by their cottage father, but there was no averaging of grades. If he got a low grade, that was his grade.

Mr. MITLER. What was the system of punishment? Would you describe that, please?

Dr. BYRD. Well, the corporal punishment?

Mr. MITLER. Yes.

Dr. BYRD. There was a system of punishment involving beating with a leather strap which was given for rule infractions and the low grade system that I have mentioned.

The rule infractions were, if a boy ran away or was a severe insubordination problem or a severe fighting problem, acting out aggressive problem, then punishment would be given immediately. If not, if it were just a question of receiving a low grade or particularly when he was in the lowest rank; if he was in the lowest rank the low grade automatically meant a beating. Beatings were given once a week on Saturday.

Mr. MITLER. Excuse me, you observed it yourself, did you not?

Dr. BYRD. Yes.

Mr. MITLER. Would you tell us what you observed?

Dr. BYRD. The reason I observed it is because myself and another psychologist working in the system received so many complaints from the boys that they would come in with a great deal of fear, anxiety and sometimes panic, that they wanted us to do something to get the low grade taken off.

We naturally soon found we were unable to do this by any consultation with staff members, so we decided we would like to witness this punishment, since it apparently was so meaningful to the boys, and also to corroborate does this actually happen, are the boys' stories actually true.

So we asked permission from the superintendent of the school to witness this. Well, this was given after some degree of hesitation and some degree of resistance on his part. But since he did acquiesce, we did watch. It consisted of taking the boys in a group to a small building.

Mr. MITLER. What did the building look like?

Dr. BYRD. A very small building, formerly used for solitary confinement. It has since had the grills removed. It would be approximately a 20- by 10-foot square and is located next to the dining hall.

As I indicated, the boys are taken there once a week on Saturday right before the lunch period. The whole business —

Mr. MITLER. What did you see?

Dr. BYRD. There are 2 rooms, 1 room in which they weighed in, the other room in which they are beat consists of a cot on which they lay down. They are told to hold the head rail and not yell out nor to move. They are beaten by the director of the department, not the superintendent of the school. The superintendent does witness each beating.

Mr. MITLER. Are the blows severe or mild?

Dr. BYRD. The blows are very severe. They are dealt with a great deal of force with a full arm swing over his head and down, with a strap, a leather strap approximately a half inch thick and about 10 inches long with a wooden formed handle. Each boy received a minimum of 15. All boys reported this, and the times I witnessed it, there was no boy who received less than 15 at that time.

As I indicated and have a material chart here, I was interested in who was getting these beatings, since there was a very young boy at this time, about age 10, who was unable to hold the bed and received approximately 22 lashes.

Senator KEFAUVER. Go ahead, sir.

Dr. BYRD. Do you want to refer to the chart?

After this is done the boy is told to get up, shake hands with the superintendent, and go on out in a group. This constitutes the actual punishment.

Senator KEFAUVER. What is your opinion?

Dr. BYRD. In my personal opinion it is brutality. Is this effective?

Senator KEFAUVER. No. I mean have you been in many States? Does that sort of thing take place in many States?

Dr. BYRD. I have not witnessed it elsewhere; no. I have not been in many States. I am not familiar with that many programs.

Mr. MITLER. But you have heard discussion, you have colleagues that have been in other parts of the country?

Dr. BYRD. It is a widespread practice, yes. It is my understanding it is.

Mr. MITLER. And your purpose in describing this is to determine whether there is any constructive value to this kind of approach, or whether it is damaging to boys, is that correct?

Dr. BYRD. That is right.

Senator KEFAUVER. What is your reaction? What is the result of your study? Does it mar them for life or what does it do?

Dr. BYRD. No, my feeling is it is too indiscriminate. I am not an advocate of doing away with all corporal punishment but I feel it should be more discriminate and more investigation of each case before it is so freely given.

As my figures indicate, it is quite freely given.

Mr. MITLER. What are some of the recommendations you would have about improving the training school system?

Dr. BYRD. I would begin at three points. Before the boy gets there, while he is there, and afterward.

Before, I think there is a very definite need for additional screening to further evaluate the problem, to help courts in committing boys, to find alternate plans other than correctional schools rather than merely saying you are letting the correctional school at the State level be the so-called dumping ground for all sorts of problems which it has been my experience to witness.

At the school itself, I think the biggest need is in the area of staff, of getting qualified staff. In my experience, many of the staff came in without any experience in working with groups of boys, much less groups of disturbed boys.

At the other end of the scale, I think there needs to be a definite follow up program in evaluation of any sort of rehabilitation program by an actual followup study of discharges, which is seldom done throughout the country as I understand it.

Senator KEFAUVER. Do you think a Federal training program such as has been described here with the Health, Education and Welfare Department putting on these seminars in various parts of the country would be helpful?

Dr. BYRD. I think it would be most helpful. I think it would be helpful not only in the direct service it would give but it would also establish a model that a State could operate and extend down to their own, such as your White House conference on children which has often been extended down to State levels.

A program such as you have outlined could also be extended down to State levels.

Senator KEFAUVER. This kind of brutality you are talking about, do you think that stems from just not knowing the right thing to do or is it just the system?

Dr. BYRD. In my own honest opinion I think it stems from personalities.

Senator KEFAUVER. You mean they get mad at some boys?

Dr. BYRD. No, basic philosophy that this is a way of handling boys. If you want to consider this as ignorance, why it may be, but just a belief that this is something that is necessary. This is a conviction of many people.

Mr. MITLER. In the surrounding that you worked, there was an increasing development of a professional staff, an effort to bring in psychologists and trained people?

Dr. BYRD. There was this effort but there was a lack of real integration in the program. This was my feeling. There were in a couple of years before me approximately five psychologists, social workers, professional people had been in and out and since my leaving there has been also additional turnover.

Mr. MITLER. What is your feeling about a large institution? Do you think that makes it a very difficult problem in developing a constructive program?

Dr. BYRD. I very definitely agree with this.

Senator KEFAUVER. Do you have any questions, Mr. Bolton-Smith?

Mr. BOLTON-SMITH. No, thank you, Mr. Chairman.

Mr. MITLER. Thank you, Dr. Byrd.

Senator KEFAUVER. Thank you very much, Dr. Byrd.